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File No.: EXP202207753

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 20, 2022, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against BANCO SANTANDER, S.A. with NIF A39000013 (hereinafter, the respondent).

The grounds for the complaint are as follows:

The claimant states that her personal data appears in BADEXCUG in relation to a debt with the respondent bank that does not belong to her, as she has not signed any policy with this entity, and the postal address listed is not correct.

She provides a complaint made to the respondent on May 30, 2022, and a report from EXPERIAN dated June 17, 2022, denying her request for deletion due to confirmation of the debt by the reporting entity.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on July 13, 2022, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 14, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On September 20, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware, among other aspects, of the following:

Throughout the preliminary investigative proceedings, three requests for information were made to the respondent on the following dates: March 24, 2023, June 12, 2023, and June 28, 2023.

In the request dated March 24, 2023, after reiterating the request for information contained in the forwarding regarding:

“1. The decision made regarding this complaint.

2. In the event of exercising the rights regulated in Articles 15 to 22 of the GDPR, proof of the response provided to the claimant.

3. Report on the causes that motivated the incident that led to the complaint.

4. Report on the measures taken to prevent similar incidents, dates of implementation, and controls carried out to verify their effectiveness.

5. Any other information deemed relevant.

Additionally, since the complaint is related to inclusion in a credit information system (debtor file), the following were requested:

6. Supporting documents proving that the affected person was informed about the possibility of inclusion in credit information systems.

7. Supporting documents proving the notification to the affected person of the inclusion of their data in the system and its delivery to the recipient or its non-rejection.

8. Supporting document for the exclusion from the credit information system, if applicable.

9. Contract with the affected person under which the debt was generated.
10. Document proving the identity of the affected person requested at the time of contracting.
11. Details of the data of the affected person held in their systems and the origin of the same.
12. Supporting documents of the actions taken aimed at collecting the debt.
13. Others.”

On April 12, 2023, the respondent submitted a written response to the request in which, after justifying that the reason for not responding to the forwarding was due to an internal management issue where the forwarding was misplaced, made the following statements:

“That prior to this complaint, the claimant contacted the Claims and Customer Service Department in which the claimant also stated that there was no signed document with the Bank that resulted in the debt, that therefore the invoked contract was false, that she does not have to prove that she signed the document but that it is the Bank's responsibility, and that in any case, the document, as it lists an address that she does not have, should also be considered false. Document number 2, the complaint filed with the Bank of Spain, is attached. A response was given to this complaint.”

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by the Bank, which presented before the Bank of Spain the allegations, which are attached as document number 3.

In summary, it was stated that, contrary to what the claimant indicates, the claimant had indeed signed a contract, specifically a credit policy with personal guarantee covering risks, which she signed together with other individuals, guaranteeing as a guarantor one hundred percent of the risk incurred with the company B.B.B., the aforementioned contract being notarized and of which there is no serious reason to doubt its validity, and which is attached as document number 4, along with document number 5, which contains the account movements resulting in the outstanding balance.

That the claim presented by the claimant, who denies the debt that the Bank claims based on the non-existence of a contractual relationship between the claimant and the Bank, is not tenable, as such a contract does exist and is signed by her, as we demonstrate. Nor is the claim regarding the falsity of the same tenable, as it does not invoke, not even the existence of a judicial ruling declaring it so, nor reasons that could lead to the conclusion that the validity of said contract may reasonably raise doubts about its validity, reasons which, as we have said, the Claims and Customer Service Department has not considered to substantiate her request and has resolved accordingly, a criterion that this entity believes should be maintained as the claimant has not provided any new element that this entity is aware of that justifies a different decision.

In the letter to the Bank of Spain referred to by the claimant, it is indicated that “In her claim, Ms. A.A.A. expresses her disagreement with the statement that the Entity is making on her behalf regarding an unpaid debt originating from a credit policy with personal guarantee covering risks in favor of the company B.B.B., in which Ms. A.A.A. would intervene as a guarantor, alleging that she is absolutely unaware of the debt being claimed while asserting that she has not subscribed to any product with Banco Santander, S.A.

That the origin of the risks reported in the name of the claimant lies in a credit policy with personal guarantee covering risks granted by Banco Popular in favor of the indicated company, on February 22, 2008, currently under recovery management for amounts of 5,171.20 euros. The aforementioned policy would in turn be linked to a derivative product for interest rate coverage subscribed on May 25, 2007, canceled on May 28, 2012, and which became unpaid in July 2011 (Annex 3). Although in that contract, Ms. A.A.A. does not appear as a guarantor, we must clarify that with the formalization of the aforementioned policy of coverage with personal guarantee covering risks up to a limit of 30,000 euros, the claimant, along with others, guarantees the banking operations of current accounts, credit, and others that the beneficiary B.B.B. may request and the Bank decides to grant, up to the agreed limits. Therefore, the operation in question would be covered by said policy and is therefore enforceable against Ms. A.A.A. in her capacity as guarantor, regardless of whether she currently holds

shares in the company. Furthermore, we consider it appropriate to point out that the aforementioned policy, a copy of which we attach as Annex 3, has an exclusively liquidatory nature and, according to its terms, is only available to debit in it the balances that result in favor of the bank as

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as a consequence of operations carried out by the beneficiary prior to or during the validity of the policies. On the other hand, we echo what is stated in clause sixteenth, which specifies: "SIXTEENTH. - Both parties agree that, notwithstanding the due date agreed upon in this policy and without prejudice to what is established in the clauses herein regarding the early termination of the same, it shall be automatically extended for successive annual periods, unless either party requests its cancellation at least 15 days prior to the initially scheduled due date or the ongoing extension. The successive extensions of this contract shall not extinguish the guarantee contemplated in clause NINTH of the same, with the guarantees provided remaining in effect until the total cancellation thereof, for which purpose the guarantor(s) hereby grant their firm consent from now and for the moment when such extensions occur."

Understanding that the response provided by the responding party did not address the information requested regarding the inclusion of the claimant in a credit information system dated 12/06/2023, a second request was made reiterating the previous one regarding:

"1. The decision made regarding this claim.

2. In the event of exercising the rights regulated in articles 15 to 22 of the GDPR, proof of the response provided to the claimant.

3. Report on the causes that led to the incident that originated the claim.

4. Report on the measures adopted to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness.

5. Any other information deemed relevant.

And additionally, since the claim is related to the inclusion in a credit information system (delinquent file), the following must be provided:

6. Supporting documents proving that the affected person was informed about the possibility of inclusion in credit information systems.

7. Supporting documents of the notification to the affected person regarding the inclusion of their data in the system and its delivery to the recipient or its non-rejection.

8. Supporting document of the exclusion from the credit information system, if applicable.

9. Contract with the affected person under which the debt was generated.

10. Document proving the identity of the affected person requested at the time of contracting.

11. Details of the data of the affected person held in their systems and the origin of such data.

12. Supporting documents of the actions taken aimed at collecting the debt.

13. Date on which the claimant's data was incorporated into a credit information system.

14. A document must be provided that proves the relationship between the responding party and the entity managing the credit information system, for the inclusion of the alleged delinquents in said file.

15. Others."

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In response to this second request, the relevant documentation provided by the claimant includes:

- Copy of the claimant's complaint to the Bank of Spain.

- Copy of the submission of allegations to the Bank of Spain by the claimant.

- Copy of the Credit Policy with personal guarantee covering risks.

- Outstanding balance of the claimant's account.

- Screenshot of the addresses of the claimant as recorded in the respondent's database.

On June 28, 2023, the third information request was issued, in which the following information is requested:

- “1. Date and means through which the claimant was informed of the possibility of their inclusion in the economic solvency file BADEXCUG/EXPERIAN.
2. Supporting documents of the notification to the claimant regarding the inclusion of their data in the system and its delivery to the recipient or its non-rejection.
3. Supporting document for the exclusion from the credit information system, if applicable.
4. Document proving the identity of the affected person requested at the time of contracting (ID card, passport, or other identification document, valid at the time of contracting).
5. Supporting documents of the actions taken to collect the debt. (These documents must contain the date on which payment of the debt was requested, a description of the debt for which payment is requested, any other circumstances deemed appropriate; a copy of the legal claim filed against it, if applicable, etc.).
6. A copy of the contract signed with EQUIFAX for the inclusion of the alleged defaulters in said file must be provided.
7. Others.”

On July 5, 2023, a response was received to this third information request, stating the following:

1.
“Date and means through which the claimant was informed of the possibility of their inclusion in the economic solvency file BADEXCUG/EXPERIAN.
The claimant's responsibility for the payment of the debt that led to their inclusion in credit information files arises from the Credit Policy with personal guarantee covering risks, which is attached as document number 1, which authorizes in its clause 12 for the entity, in case of non-payments, to include the obligors in the providers of asset solvency and credit services.
The TWELFTH clause of the attached credit policy establishes that “In the event that the holder delivers or assigns to the Bank documents for collection management or discount for crediting to the account, the holder authorizes the entity where the payment is domiciled of the assigned documents to, acting on their behalf, require payment from the obligors resulting from said documents in the event that they are unpaid, also authorizing any of the entities to provide information to service providers regarding asset solvency and credit in relation to the defaults concerning the assigned documents. The holder is obliged to immediately and sufficiently inform the Bank of the subsequent payment of the debt by the obligor, assuming the responsibilities that may arise from the breach of such obligation, and consequently from the inaccurate maintenance of the data in the files of the aforementioned service providers.”
It is also indicated in the aforementioned Credit Policy that the claimant acts as a joint administrator of HL PATRIMONIAL, S.L.

1.
Supporting documents of the notification to the claimant regarding the inclusion of their data in the system and its delivery to the recipient or its non-rejection.
The Bank, as a principle, makes a prior payment request before inclusion in the files. And this has occurred in this case, as evidenced by documents numbers 2, 3, and 4.”
In the letter provided and supposedly sent by the respondent to the claimant as a prior payment request, the following data appears:

“Ms. A.A.A.
***ADDRESS.1
***CITY”

It also includes the reference “REF: ***REFERENCE.1” and the following information:
In the event that payment is not made within the next 10 days, and in accordance with the provisions of Article 20 of Organic Law 3/2018, of December 5, on data protection and management of digital rights, we inform you that the data relating to the non-payment may be communicated to credit information systems (ASNEF - EQUIFAX File and EXPERIAN File), where they will remain accessible for a maximum of FIVE YEARS.
These same data appear in the certificate issued by the company Telemail, S.L., dated July 5, 2023, provided as supporting documentation by the respondent. This certificate states:

- “That during the month of September 2020, the process of generating and printing the following communication was carried out by Banco SANTANDER, S.A. regarding the operation (...). That in this process and on the date 04/09/2020, the communication, reference ***REFERENCE.1, was generated in the name of A.A.A., at the address ***ADDRESS.1.

- On the date (...), a total of 6285 communications, including the communication of reference ***REFERENCE.1, were made available to the Postal Service for subsequent distribution by that Service. A document of the deposit of the Service is attached.”

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Mail with indication of the shipment with reference ***REFERENCIA.2 to ***REFERENCIA.3, in which that communication was integrated.

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No record has been received that this communication has been returned in the return processing managed by Telemail, S.L.”

That is to say, Telemail, S.L. certifies that on behalf of the claiming party, it sent a communication via the Postal Service to the claimed party and that it has no record of that communication being returned, but it does not certify that such communication took place.

In the “Delivery Receipt” from Correos, “the shipment with reference ***REFERENCIA.2 to ***REFERENCIA.3” appears, in which the communication “***REFERENCIA.1” would be included.

And that said shipment of communications was delivered to Correos on date (...).

This is independent of other claims that have been made with the same purpose and that have led to various responses to them, such as the one made to the Bank, as evidenced by the document attached as number 5, and the one made to the Bank of Spain, as evidenced by document 6.

1.

Supporting document for the exclusion from the credit information system, if applicable.

Notwithstanding all of the above, in view of the claim made by the interested party before the Agency, it was deemed appropriate to proceed with the cancellation of this pending the outcome of said claim. This is evidenced by the document attached as document number 7.

This document consists of an internal email from the Bank, dated March 29, 2023, stating that “The indicated client is NOT listed in the Solvency Register as of today by our Entity” and that “The last entry is dated 01/19/2023.”

4. Document proving the identity of the affected person requested at the time of contracting (ID card, passport, or other identity document, valid at the time of contracting).

The identification of the policyholder and guarantors of the policy in question was carried out using the National Identity Document, as evidenced by the policy itself. In this case, moreover, as evidenced by the same, the policy was signed with the intervention of a Notary Public, who subscribes to the corresponding diligence in the text of the same, stating that he certifies the identity and legitimacy of the grantors. From this perspective, the allegations made by the claimant regarding the falsity of the document or the falsity of their signature are unfounded, allegations that have not been proven in the corresponding criminal proceedings.

In said credit policy, there is a diligence from Notary D. C.C.C. “certifying the identity and legitimacy of the grantors, as well as that the consent has been freely given by them, duly informed by him, and that the granting complies with current legality.”

5. Documents evidencing the actions taken to collect the debt. (These documents must contain the date on which the payment of the debt was requested, a description of the debt whose payment is requested, any other circumstances deemed appropriate; a copy of the legal claim filed against it, if applicable, etc.).

We refer here to the claims for collection mentioned in the response to point 2, some of which led to the responses from the claimant referred to there.

6. A copy of the contract signed with EQUIFAX must be provided for the inclusion of the alleged defaulters in said file.

Attached, as documents numbers 8 and 9, are the initial contract and the subsequent one that

modifies it.”

LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Article 6 of the GDPR, which regulates the lawfulness of processing, establishes the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
 - b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract;
 - c) processing is necessary for compliance with a legal obligation to which the controller is subject;
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- d) the processing is necessary to protect vital interests of the data subject or another natural person;
 - e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
 - f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

2. Member States may maintain or introduce more specific provisions in order to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, letters c) and e), by setting more precise specific requirements for processing and other measures that ensure lawful and fair processing, including other specific situations of processing under Chapter IX.

3. The basis for the processing indicated in paragraph 1, letters c) and e), shall be established by:

- a) Union law, or
- b) the law of the Member States applicable to the data controller.

The purpose of the processing shall be determined in that legal basis or, in relation to the processing referred to in paragraph 1, letter e), shall be necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, including, among others: the general conditions governing the lawfulness of processing by the controller; the types of data being processed; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of processing, including measures to ensure lawful and fair processing, such as those relating to other specific situations of processing under Chapter IX. Union law or the law of the Member States shall pursue a public interest objective

and shall be proportionate to the legitimate aim pursued.

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union law or the law of the Member States that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any relationship between the purposes for which the personal data have been collected and the purposes of the intended further processing;
- b) the context in which the personal data have been collected, in particular regarding the relationship between the data subjects and the data controller;

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- c) the nature of the personal data, specifically when special categories of personal data are processed, in accordance with Article 9, or personal data related to criminal convictions and offenses, in accordance with Article 10;

- d) the possible consequences for the data subjects of the intended further processing;

- e) the existence of adequate safeguards, which may include encryption or pseudonymization."

III

Therefore, based on the information provided in the previous paragraphs, it should be noted that the respondent provides, on one hand, a certificate from an external company that certifies that it generated and printed the payment demand letter addressed to the claimant, containing the information required by Article 20 of the LOPDGDD, and additionally provides proof of emails regarding the delivery of the letter and a certificate from an external company of non-return of the letter, thus making their actions in accordance with the law.

On the other hand, although it is noted that there is an error in the address to which the demand was sent ***LOCALITY, the postal code is correct and there is nothing to suggest that the claimant did not receive the payment demand.

Furthermore, the respondent has proven the existence of a contract, so no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, since it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO SANTANDER, S.A. and to the claimant.

SECOND: TO NOTIFY this resolution to BANCO SANTANDER, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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